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SUPREME COURT OF TEXAS
BLAKE A. HAWTHORNE, CLERK

KEN PAXTON
ATTORNEY GENERAL OF TEXAS

May 10, 2018

Mr. Blake Hawthorne, Clerk
Texas Supreme Court
P. O. Box 12248
Austin, Texas 78711

Dear Mr. Hawthorne:

Please file the following letter brief of amicus curiae the State of Texas with the Texas MDL panel, in docket no. 18-0358, and forward it to the members of the panel.

TO THE TEXAS MDL PANEL

The State of Texas, through Texas Attorney General Ken Paxton, files this *amicus curiae* letter in response to Defendants' Joint Motion to Transfer and Request for Immediate Stay.[1] It informs the Court that the State will soon file a Deceptive Trade Practices Act lawsuit in Travis County against one of the manufacturers that has requested an MDL.

Defendant manufacturers and distributors seek to consolidate just eight lawsuits, filed by County Plaintiffs. The State understands that none of the County Plaintiffs have instituted Deceptive Trade Practices claims. The State intends to initiate its DTPA lawsuit, in the public interest, in Travis County, Texas prior to May 18, 2018. Once it has filed, the State will oppose the request for an MDL and ask that: the request be denied, the State's lawsuit be excluded from it, or, at the least, the panel be in Travis County. The State thus asks the Court not to issue an MDL order before it files its lawsuit and its briefing on the MDL request.

If the Panel does establish a MDL that includes the State's lawsuit, it should do so in Travis County, the forum in which State will file its suit in Travis County and in which one case is already pending. *See County of Travis v. Purdue Pharma, L.P., et al.*, No. D-1-GN-18-000625, 216st District Court of Travis County, Texas.

* * *

The State asks that the Court delay any ruling on the MDL requests until it has filed its lawsuit. If Defendants indicate they would seek to include the State's enforcement action in the MDL, the State would then request the opportunity to fully brief its position that an MDL is not

[1] No fee has been, or will be, paid for the preparation of this brief.

warranted, should exclude the State's lawsuit, or, if the State is to be brought into the MDL, should be formed in Travis County.

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Certificate of Service

The attached was served by electronic filing on counsel listed on the docket on May 10, 2018:

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